were *Solicitor General Sauer*, *Assistant Attorney General Shumate*, *Deputy Solicitor General Harris*, *Michael S. Raab*, and *Ashley C. Honold.**

JUSTICE KAGAN delivered the opinion of the Court.

In *Yearsley* v. *W. A. Ross Constr. Co.*, 309 U. S. 18, 20 (1940), this Court held that a federal contractor cannot be held liable for conduct that the Government has lawfully "authorized and directed" the contractor to perform. Rather, liability may attach only if the authorization was unlawful or if the contractor acted outside its scope. See *id.*, at 20–21.

The question here is whether a contractor may take an immediate appeal of a district court's pretrial order denying *Yearsley* protection. The answer is no. Because *Yearsley* provides a defense to liability, not an immunity from suit, an order denying its protection can be effectively reviewed after a final judgment. So appellate review of such an order, as of most pretrial rulings, must await completion of the district court's proceedings.

Page Proof Pending Publication

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*Briefs of *amici curiae* urging reversal were filed for the Chamber of Commerce of the United States of America by *Michael R. Huston*, *Shae McPhee*, *Jonathan D. Urick*, and *Nicholas S. Crown*; for the Coalition for Common Sense in Government Procurement by *Nicole Saharsky* and *Charles A. Rothfeld*; for MVM, Inc., by *Paul J. Fraidenburgh*, *Alexander P. Carroll*, and *Anne M. Voigts*; for the Nevada Hospital Association by *Hugh C. Griffin*; for the Professional Services Council—The Voice of the Government Services Industry by *Daniel L. Russell*, *Jr.*, and *Raymond B. Biagini*; and for Alexander Volokh, *pro se*.

Briefs of *amici curiae* urging affirmance were filed for the American Association for Justice by *Robert S. Peck*, *Bruce Plaxen*, and *Jeffrey R. White*; for Citizens for Responsibility and Ethics in Washington by *Jonathan Maier* and *Donald K. Sherman*; for Public Citizen by *Nandan M. Joshi*, *Scott L. Nelson*, and *Allison M. Zieve*; for the Roderick and Solange MacArthur Justice Center et al. by *Amit Jain*, *Ellen Noble*, *Anya Bidwell*, and *Patrick Jaicomo*; and for Erwin Chemerinsky by *Steven A. Hirsch* and *Anne Bloom*.

Georgina Yeomans, *Teague Paterson*, and *Matthew Stark Blumin* filed a brief of *amicus curiae* for the American Federation of State, County and Municipal Employees.

I

Petitioner GEO Group operates a private detention facility in Aurora, Colorado, under a contract with U. S. Immigration and Customs Enforcement (ICE). The facility holds individuals whose immigration proceedings are pending. Respondent Alejandro Menocal was detained there in 2014. Soon afterward, he initiated this class action on behalf of the Aurora facility's detainees.

The suit challenges two policies GEO used to put the detainees to work, thereby reducing its own labor costs. First, the so-called Sanitation Policy required detainees to clean, without any pay, all the facility's common areas. A detainee's failure to perform his assigned tasks led to escalating sanctions, up to 72 hours in solitary confinement. Second, the so-called Voluntary Work Program offered $1 per day to detainees for other kinds of needed work, such as preparing food and doing laundry. Menocal's complaint alleged that the former policy violated a federal bar on forced labor and that the latter breached Colorado's prohibition on unjust enrichment.

Page Proof Pending Publication

Following discovery, the District Court addressed GEO's contention that *Yearsley* required the suit's dismissal. That was so, the argument ran, because ICE had by contract "authorized and directed" GEO to carry out the two challenged policies. Defendant's Cross-Motion for Summary Judgt. in No. 14–2887 (D Colo., June 25, 2020), ECF Doc. 284, p. 17. But the District Court did not read the government contract that way. Nothing in its terms, the court found, instructed GEO to adopt the work rules at issue. Rather, in "independently develop[ing] and implement[ing]" those rules, GEO "far exceeded its contractual obligations." 635 F. Supp. 3d 1151, 1173 (Colo. 2022). So the *Yearsley* doctrine, the District Court concluded, did not relieve GEO of legal responsibility. Instead, a trial would be necessary to address whether GEO's policies violated the referenced bans on forced labor or unjust enrichment.

GEO immediately filed an appeal, but the Court of Appeals for the Tenth Circuit dismissed it for lack of jurisdiction. See 2024 WL 4544184 (Oct. 22, 2024). Appellate jurisdiction, the court explained, seldom extends to an order that does not terminate the litigation at issue. Such an order qualifies for interlocutory review only if it satisfies three conditions deriving from this Court's decision in *Cohen* v. *Beneficial Industrial Loan Corp.*, 337 U. S. 541 (1949). And an order denying *Yearsley* protection, the Tenth Circuit held, does not do so. The court saw no need to address the first or third *Cohen* conditions because it concluded that a *Yearsley* denial flunked the second: Such a ruling is not (as *Cohen* demands) "completely separate from the merits" of the suit. 2024 WL 4544184, *7. That is because, the court reasoned, an inquiry into what the Government instructed the contractor to do is relevant to both *Yearsley*'s application and the "lawfulness of the contractor's challenged actions." *Id.*, at *8.

Page Proof Pending Publication

We granted certiorari, 605 U. S. 968 (2025), to resolve whether a pretrial order denying *Yearsley* protection to a government contractor is immediately appealable. Like the Tenth Circuit, we hold that it is not. But unlike the Tenth Circuit, we focus on the third *Cohen* condition, which requires an order to be effectively unreviewable on appeal from a final judgment.

II

"Finality as a condition of review is an historic characteristic of federal appellate procedure." *Cobbledick* v. *United States*, 309 U. S. 323, 324 (1940). Originating in the First Judiciary Act of 1789, the finality requirement is now codified in 28 U. S. C. § 1291. The courts of appeals, that section provides, have jurisdiction over appeals from "final decisions of the district courts." And a decision generally is "final" under § 1291 only when it "resolves the entire case"—when it "ends the litigation" (on the merits or otherwise) and "leaves nothing for the court to do but execute the judgment." *Ritzen Group, Inc.* v. *Jackson Masonry, LLC*, 589 U. S. 35, 37–38

(2020). That final-judgment rule, by preventing piecemeal appeals, "promotes the efficient administration of justice" and "preserves the proper balance between trial and appellate courts." *Microsoft Corp.* v. *Baker*, 582 U. S. 23, 36–37 (2017).

For a "small class" of decisions, however, the finality rule gives ground and allows interlocutory appeals. *Cohen*, 337 U. S., at 546. Section 1291, we have often explained, requires a "practical rather than a technical construction," and thus may treat as "final" certain decisions that do not end a case. *Mohawk Industries, Inc.* v. *Carpenter*, 558 U. S. 100, 106 (2009) (quoting *Cohen*, 337 U. S., at 546). We identify those decisions by category, not case-specific circumstances. See *Mohawk*, 558 U. S., at 107. And we erect a high bar. A non-terminal order may be appealed, *Cohen* held, only if it "finally determine[s] claims of right separable from, and collateral to, rights asserted in the action, too important to be denied review and too independent of the cause itself to require that appellate consideration be deferred." 337 U. S., at 546. That so-called collateral-order doctrine, we have since underscored, is "narrow," "stringent," and of "modest scope." *Digital Equipment Corp.* v. *Desktop Direct, Inc.*, 511 U. S. 863, 868 (1994); *Will* v. *Hallock*, 546 U. S. 345, 350 (2006).

Page Proof Pending Publication

To keep it that way, this Court has "distilled" the *Cohen* ruling into three non-negotiable conditions. *Will*, 546 U. S., at 349. A pre-judgment order, to get immediate review, must "(1) conclusively determine the disputed question, (2) resolve an important issue completely separate from the merits of the action, and (3) be effectively unreviewable on appeal from a final judgment." *Van Cauwenberghe* v. *Biard*, 486 U. S. 517, 522 (1988). Failure on any component of that three-part test is fatal.

When, as here, an order denies a pretrial request to dismiss, appealability under *Cohen* will generally turn on whether the defendant has asserted a defense to liability or instead an immunity from suit. See *Mitchell* v. *Forsyth*, 472 U. S. 511, 526–527 (1985). If a defense, *Cohen* is likely to

block an immediate appeal; if an immunity, *Cohen* will likely allow it. To show why, we describe below the difference between a merits defense and an immunity; what that difference entails for the right to avoid trial; and how that right matters in applying the third *Cohen* condition. Once that is done, it becomes clear why, as later described, the parties here mainly contest whether *Yearsley* offers an immunity or just a merits defense. See *infra*, at 447–448.[1]

To start, a party asserting a merits defense in a lawsuit makes a fundamentally different kind of argument than a party asserting an immunity. The former advances some reason why his conduct was not unlawful—or said otherwise, why under the law he did nothing wrong. And so, that defendant says, he should not be found liable: Because he obeyed the law, he should not, for example, have to pay damages. By contrast, a party asserting an immunity "makes no challenge" to "the merits of the charge against him." *Abney* v. *United States*, 431 U. S. 651, 659 (1977). That defendant need never say he followed the law, because his claim of immunity does not turn on his conduct's legality. "[A]n immunity frees one who enjoys it from a lawsuit whether or not he acted wrongly." *Richardson* v. *McKnight*, 521 U. S. 399, 403 (1997). A classic example is sovereign immunity: It shields the Government from suit (absent a waiver) regardless whether the Government violated the law. See, *e. g.*, *FDIC* v. *Meyer*, 510 U. S. 471, 475 (1994).[2]

Page Proof Pending Publication

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[1] Note that one category of cases exists outside this dichotomy: a nonmerits-based defense that also is not an immunity. On occasion, this Court has decided that a defense, although barring suit irrespective of the merits, still fails to qualify as an immunity because it does not serve sufficiently "weighty public objective[s]." *Will* v. *Hallock*, 546 U. S. 345, 353 (2006) (so holding with respect to the Federal Tort Claims Act's judgment bar). That "public interest" wrinkle, however, never arises if the defense is on the merits—which, as we will explain, is the case here.

[2] Qualified immunity is, in the respect relevant here, the same. That doctrine shields a defendant even when the claim against him "in fact has merit"—or otherwise said, even when he violated the law—so long as the

That difference between a merits defense and an immunity entails another: The latter, but not the former, is in its "essence" an "entitlement not to stand trial." *Mitchell*, 472 U. S., at 525. Because an immunity applies irrespective of the merits, the protection it offers is not a simple finding of non-liability. Rather, the immunity ensures that the defendant need not "answer for his conduct" in court at all—that he avoids, in addition to liability, all the usual "burdens of litigation," including a trial. *Id.*, at 525–526. And so we typically describe the protection in just that way: as an immunity "*from suit*." *Id.*, at 526 (emphasis in original); see, *e. g.*, *Thacker* v. *TVA*, 587 U. S. 218, 221 (2019); *Jam* v. *International Finance Corp.*, 586 U. S. 199, 202 (2019). A "mere defense" to liability, as we have noted, offers something different, and of lesser value. *Mitchell*, 472 U. S., at 526. Because it establishes that the defendant acted lawfully, a valid defense leads to a judgment of non-liability. But it does not allow the defendant to escape the varied rigors and costs of legal proceedings. Indeed, it is in and through those proceedings that the asserted defense is addressed and liability finally determined.

Page Proof Pending Publication

And that divergence—in whether the defendant possesses a right not to stand trial—matters for the third *Cohen* condition. Again, that condition states that a non-terminal order may be appealed when issued only if it is "effectively unreviewable on appeal from a final judgment." *Van Cauwenberghe*, 486 U. S., at 522; see *supra*, at 444. For that to be true, we have explained, the order must involve a right that "would be irretrievably lost absent an immediate appeal." *Van Cauwenberghe*, 486 U. S., at 524. The right to avoid trial fits that description. It is irretrievably lost once trial occurs, even supposing the defendant were to prevail on the

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law at that time was not "clearly established." *Camreta* v. *Greene*, 563 U. S. 692, 705 (2011). "Like other forms of immunity," then, qualified immunity offers protection "even when [the defendant] acts unlawfully." Brief for United States as *Amicus Curiae* 23.

merits. And so, in the ordinary case, the denial of an immunity is immediately appealable. See *ibid.*; *Abney*, 431 U. S., at 659–660. But the right to a finding of non-liability stands on a different footing: It can be effectively vindicated after a trial has occurred, through the reversal of an adverse final judgment. And so the denial of a merits defense is generally appealable only once trial-court proceedings have ended. See *Van Cauwenberghe*, 486 U. S., at 524; *Mitchell*, 472 U. S., at 526.

In short, then, distinguishing between a merits defense and an immunity from suit, in the way described above, offers a ready way of determining whether the denial of a request to dismiss a case can satisfy *Cohen*'s third condition for interlocutory review.[3]

III

For just that reason, the parties here mainly dispute whether our *Yearsley* decision offers federal contractors a

Page Proof Pending Publication

[3] By the same token, that distinction is likely to determine whether the other two *Cohen* conditions are met, though we need not here address the reasons in any detail. See *Puerto Rico Aqueduct and Sewer Authority* v. *Metcalf & Eddy, Inc.*, 506 U. S. 139, 144 (1993) ("Once it is established that" a State is "immune from suit in federal court, it follows that the elements of the *Cohen* collateral order doctrine are satisfied"). Recall that *Cohen*'s second condition, on which the Court of Appeals relied, demands that the order "resolve an important issue completely separate from the merits of the action." *Van Cauwenberghe* v. *Biard*, 486 U. S. 517, 522 (1988); see *supra*, at 444. A decision on a defense, addressing the legality of the defendant's conduct, goes directly to the suit's merits—whereas a decision on an immunity, applying regardless of that conduct's legality, does not. Similarly for the first condition, which is that the order "conclusively determine the disputed question." *Van Cauwenberghe*, 486 U. S., at 522. When a defense turns on contested facts, as is often true, a pretrial order denying it functions only to defer its resolution until trial. By contrast, we have held, a pretrial denial of an immunity always acts as a "fully consummated decision" because nothing can then happen to avert "the trial the defendant maintains is barred." *Mitchell* v. *Forsyth*, 472 U. S. 511, 527 (1985) (quoting *Abney* v. *United States*, 431 U. S. 651, 659 (1977)).

merits defense or instead an immunity. Menocal (supported by the United States as *amicus curiae*) says a defense, because *Yearsley* gives contractors only a way to show that their conduct complied with the law. GEO says an immunity—more specifically, "derivative sovereign immunity." Brief for GEO 15. Under *Yearsley*, GEO contends, the Government's own immunity extends to contractors who meet specified conditions, thereby giving them the "right not to stand trial." Brief for GEO 15. So which is it—a defense or an immunity?

Yearsley involved a suit by landowners against a federal contractor for flooding their property. The Government had hired the contractor to redirect the Missouri River in order to improve its navigation. The construction company, as specified in the contract, built dikes in a part of the river near where the Yearsleys owned a farm. The result, as expected, was to wash away almost 100 acres of their land. The Yearsleys did not dispute that the contractor's work was "all authorized and directed by the Government." 309 U. S., at 20. Nonetheless, they sued the contractor for money damages.

Page Proof Pending Publication

This Court held that there was "no liability on the part of the contractor." *Id.*, at 21. Drawing from multiple precedents involving agency law, the Court explained that a contractor acting as an agent of the Government could be held liable for injurious conduct in only two circumstances: when "he exceeded his authority" or when that authority "was not validly conferred." *Ibid.* Here, neither circumstance obtained. As to the second, the Court explained that the Government had "validly" authorized the company to flood the Yearsleys' land, because the Government itself possessed that legal right and had properly delegated it by contract. *Id.*, at 21–22. And as to the first, the Court concluded that all the company's work had stayed within the bounds of the authority given: The Government had provided instructions, and the contractor had merely "execut[ed] its will." *Id.*, at

20–21. Given both those facts—the Government's lawful authorization and the contractor's compliance with it—the Court could see "no ground for holding [the contractor] liable." *Id.*, at 22.

That reasoning describes a defense, not an immunity. *Yearsley* provides protection to a contractor when it has received a lawful authorization and acted according to its terms—meaning, when the contractor has acted within legal bounds. So in invoking *Yearsley*, the contractor is making the argument of a merits defense—that it is not liable because it has complied with the law. See *supra*, at 445. Conversely, *Yearsley*'s protection runs out when the contractor may have violated the law—when the contractor either acted under an illegal authorization or exceeded the scope of a legal one. By drawing the line there, *Yearsley* ensures that it will never shield unlawful conduct, in the way that all immunities do. See *supra*, at 445. In short, because *Yearsley* protects a contractor only when—and only because—it has acted lawfully, *Yearsley* operates as a defense to liability on the merits. And that is consistent with all *Yearsley*'s language. The decision never refers to an "immunity," or otherwise suggests that the defendant receives a pass from legal proceedings; it asks only whether the contractor may be found "liable." 309 U. S., at 21–22.

Pages Proof Pending Publication

Still more, GEO's contrary view would put *Yearsley* in conflict with the general rule that sovereign immunity is not transferrable to agents, including contractors, of a government. As Justice Holmes once explained, the Federal Government's immunity from a suit (absent a statute providing otherwise) "does not extend to those that act[ ] in its name." *Sloan Shipyards Corp.* v. *United States Shipping Bd. Emergency Fleet Corporation*, 258 U. S. 549, 568 (1922). The Court repeated that precept in the Term just before *Yearsley*: "[T]he government does not become the conduit of its immunity in suits against its agents" just because "they do [the government's] work." *Keifer & Keifer* v. *Recon-*

struction Finance Corporation, 306 U. S. 381, 388 (1939). Rather, the "exceptional freedom from legal responsibility" that sovereign immunity offers is "confined" to the sovereign entity itself. *Ibid.* Or again, a few Terms after *Yearsley*: A private contractor cannot obtain "[i]mmunity from suit" by "reason of a contract" it made with the Government. *Brady* v. *Roosevelt S. S. Co.*, 317 U. S. 575, 583 (1943). GEO tries to bypass those holdings by arguing that they preclude a contractor from asserting only "unconditional" sovereign immunity, not the (supposed) "derivative sovereign immunity" *Yearsley* offers, which is conditioned on compliance with the Government's lawful directives. Reply Brief 6–7. But the proposed distinction is strained. The whole thrust of the decisions is to deny that government agents can assert—whether always or sometimes—a "derived" form of sovereign immunity. Rather, the Court insisted, sovereign immunity belongs alone to the Government.

Page Proof Pending Publication

And another, pre-*Yearsley* decision proves the point, by relegating a state agent that had asserted sovereign immunity to a merits defense, whose contours anticipated what *Yearsley* would offer. See *Hopkins* v. *Clemson*, 221 U. S. 636 (1911). Oddly enough, the suit challenged the same kind of conduct involved in *Yearsley*: The government agent had flooded a person's land. The State itself, the Court noted, would have had "immunity from [a] suit" based on such conduct. 221 U. S., at 642. But an agent working on the State's behalf could not "avail itself" of that special "exemption" from "judicial process." *Id.*, at 642, 645. "[I]mmunity from suit," the Court explained, "is a high attribute of sovereignty—a prerogative of the State itself"—which cannot be invoked by the State's agents. *Id.*, at 642–643. Yet all was not lost: The agent got something. Although the agent was "not exempt from suit," it could "successfully defend" against the charges by showing the "lawful authority under which [it] acted." *Id.*, at 643. Those terms evoke the ones

Yearsley used later. See 309 U. S., at 22 (precluding liability for a contractor "acting under" "validly conferred" authority); *supra*, at 448–449. And they function not, as GEO posits, to condition the transfer of sovereign immunity, but to describe something different—as the Court made explicit, a merits "defen[se]." *Hopkins*, 221 U. S., at 643.[4]

Once *Yearsley* is understood in that way—as a merits defense—the question before us almost answers itself: No, a district court's denial of *Yearsley* protection is not immediately appealable under § 1291. Like the denial of other defenses, such a ruling is not, as *Cohen*'s third condition demands, "effectively unreviewable on appeal from a final judgment." *Van Cauwenberghe*, 486 U. S., at 522. The right that a merits defense affords is to a finding of nonliability. And that right—unlike the right not to stand trial—is fully vindicable on appeal from a final judgment. See *Swint* v. *Chambers County Comm'n*, 514 U. S. 35, 43 (1995); *supra*, at 446–447. All an appellate court need do at that

Page Proof Pending Publication

[4] GEO counters that two of our decisions refer to *Yearsley* as offering "immunity," see Brief for GEO 17, 23, but that argument makes far too much of one piece of loose language. The first cited case, *Brady* v. *Roosevelt S. S. Co.*, 317 U. S. 575 (1943), mainly cuts against GEO. As noted above, the Court there *rejected* the view that a government contractor obtains "[i]mmunity from suit" by virtue of its contractual relation. *Id.*, at 583; see *supra*, at 450. The Court then turned to *Yearsley*, finding it not to apply because the suit alleged negligent conduct, outside what the Government had authorized. In that half-paragraph, the decision once refers to *Yearsley* as providing a "certain immunity." 317 U. S., at 583. But it apparently used that term in a colloquial sense, as something of a synonym for "protection." The Court's fuller description of *Yearsley* explains that it relieves the contractor of "liability," without suggesting that it also offers a pass from litigation. 317 U. S., at 583. And the second cited case, *Campbell-Ewald Co.* v. *Gomez*, 577 U. S. 153 (2016), gives GEO even less to work with. That decision merely quotes the imprecise phrase in *Brady* on the way to rejecting another contractor's claim (even more expansive than GEO's) to share in the Government's sovereign immunity. 577 U. S., at 166.

point is reverse the erroneous liability finding. So the finality rule of § 1291 precludes interlocutory review of a *Yearsley* denial.[5]

For those reasons, we hold that the Court of Appeals lacked jurisdiction over GEO's appeal. If eventually found liable, GEO may of course appeal the District Court's rejection of its asserted *Yearsley* defense. But GEO must wait until then. A *Yearsley* denial is not appealable before the trial court's proceedings have ended.

We therefore affirm the judgment of the Court of Appeals and remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE THOMAS, concurring in part and concurring in the judgment.

I concur in Parts I and III of the Court's opinion and in its judgment. I agree with the Court that *Yearsley* v. *W. A. Ross Constr. Co.*, 309 U. S. 18 (1940), and similar decisions establish a defense from liability and not an immunity from suit. See *ante*, at 448–449. Orders rejecting *Yearsley* defenses are therefore unlike the orders denying immunities that this Court has already held to be immediately appealable. Because no other statute or rule authorized an interlocutory appeal here, the Court correctly affirms the Tenth Circuit's dismissal. I do not join Part II because "[w]e need not, and in my view should not, further justify our holding by applying" the collateral-order doctrine established by *Cohen* v. *Beneficial Industrial Loan Corp.*, 337 U. S. 541 (1949). *Mohawk Industries, Inc.* v. *Carpenter*, 558 U. S. 100, 115 (2009)

Page Proof Pending Publication

[5] This holding still allows review of a given *Yearsley* denial by means of § 1292(b)'s separate appeal-certification process. Under that provision, a district court may find that the special difficulty and importance of an otherwise unappealable order counsels in favor of immediate review, and an appellate court may accept that determination. Here, though, the District Court saw no reason to act under § 1292(b).